

§ 365.1. Appeal; authorized as of right. 1. An appeal to the appropriate appellate division may be taken as of right by the respondent from any order of disposition under this article in accordance with article eleven.

2. An appeal to the appropriate appellate division may be taken as of right by the presentment agency from the following orders of the family court:

(a) an order dismissing a petition prior to the commencement of a fact-finding hearing; or

(b) an order of disposition, but only upon the ground that such order was invalid as a matter of law; or

(c) an order suppressing evidence entered before the commencement of the fact-finding hearing pursuant to section 330.2, provided that such presentment agency files a statement pursuant to subdivision nine of section 330.2.